

IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
SECOND DISTRICT

CHRISTOPHER HANSON,
Petitioner,

v. Case No.: [To Be Assigned by Court]

SARAH HANSON,
Respondent.

_____/

PETITION FOR WRIT OF CERTIORARI

Filed by:

Christopher Hanson,

Primary E-Mail: [REDACTED]

Date: March 17, 2025

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
FAMILY LAW DIVISION**

In re: the Marriage of:

SARAH HANSON

Wife/Petitioner,

Case No.: 24-DR-1150

and

Division: D

CHRISTOPHER HANSON

Husband/Respondent.

_____/

PETITION FOR WRIT OF CERTIORARI

COMES NOW, CHRISTOPHER HANSON, Petitioner in this certiorari proceeding and Respondent in the underlying family law case, on his own behalf, pursuant to Florida Rule of Appellate Procedure 9.100 and Article V, Section 4(b)(3) of the Florida Constitution, and petitions the Second District Court of Appeal for a Writ of Certiorari to review the Orders of the Circuit Court of the Thirteenth Judicial Circuit in and for Hillsborough County, Florida, entered by the Honorable Kelly Ayers on February 14, 2025 (Appendix, pp. 445-447), denying the "Husband/Respondent's Motion for Enforcement and Finding of Contempt" (Appendix, pp. 203-208), and on March 5, 2025 (Appendix, p. 458), denying the

"Husband/Respondent's Motion to Vacate Order Denying Motion for Enforcement and Finding of Contempt and in the Alternative Motion for Clarification and/or Formal Written Order" (Appendix, pp. 448-456). For clarity, in the underlying case (Case No. 24-DR-1150), Sarah Hanson is the Petitioner and Christopher Hanson is the Respondent; in this certiorari proceeding, Christopher Hanson is the Petitioner and Sarah Hanson is the Respondent. To avoid confusion, the parties will be referred to herein as "Husband" (Christopher Hanson) and "Wife" (Sarah Hanson) throughout this petition. In support thereof, Husband states:

I. JURISDICTION

1. This Court has jurisdiction under Article V, Section 4(b)(3) of the Florida Constitution and Florida Rule of Appellate Procedure 9.030(b)(2)(A) to review non-final orders of circuit courts that cause irreparable harm not remediable on appeal from a final judgment.

II. STATEMENT OF THE CASE AND FACTS

2. In the underlying dissolution proceeding, Husband Christopher Hanson sought enforcement of Wife Sarah Hanson's compliance with mandatory disclosure (and corresponding certificate of compliance) requirements under Fla. Fam. L. R. P. 12.285 (Appendix, pp. 203-208, 448-456, ¶ 9, 466-552), based on the Court compelling Wife and Mr. Davis to comply with mandatory disclosures within 10

days of the October 28, 2024 hearing and order compelling compliance (Appendix, pp. 150-152 and 203-208).¹

3. There is no dispute on whether the Court ordered Wife's compliance at the October 28, 2024 hearing include an award of fees and costs to Husband. (Appendix pp. 553-590)

4. The issue before this Court is whether Judge Ayers departed from the essential requirements of law in excusing Wife from full compliance with mandatory disclosure requirements and whether that results in material injury without adequate remedy on appeal. Florida Rule of Appellate Procedure 9.100.

5. As explained further below, Mr. Davis and Wife stipulated to completing the mandatory disclosure process no later than June 28, 2024, although (as part of a long pattern of attempts to delay and conceal) Wife and Mr. Davis made no attempt at compliance or offering an explanation until October 22, 2024, just days before the hearing on Husband's motion to compel (Appendix, pp. 69-74 and 203-208).

6. Husband refused to cancel the October 28, 2024 hearing² at which Judge Ayers ordered compliance with the mandatory disclosure process within 10 days (Appendix, pp. 150-152). Ever since then, Mr. Davis has engaged in many ethical

¹ The docket version of the order compelling Wife's compliance with mandatory disclosures (Docket #54) is corrupted. However, Husband provided an unsigned copy, while a certified copy was purchased on 3-16-25 and can be produced upon receipt).

² October 24 on the transcript is a typographical error.

and discovery violations all designed at concealing answers to the only question that resulted in this litigation as explained further below. (Appendix, pp. 553-590).

7. On December 18, 2024, Husband filed "Husband/Respondent's Motion for Enforcement and Finding of Contempt" (Appendix, pp. 203-208), alleging Wife's willful noncompliance with mandatory disclosure requirements under Florida Family Law Rule of Procedure (FFLRP) 12.285, as ordered by the trial court on October 28, 2024, to be completed within 10 days.

8. Wife's Certificate of Compliance *strategically and sneakily limits certification to "the last 12 months" (October 2023 forward), not the statutorily mandated periods described in Rule 12.285* (Appendix, pp. 129-138 and 206, ¶ 15-21).

9. The trial court denied Husband/Respondent's Motion for Enforcement and Finding of Contempt (Appendix, pp. 203-208) on February 14, 2025 (Appendix, pp. 445-447), without commenting on the course of discovery violations and unethical conduct on this precise issue (getting discovery from Wife) as described at Appendix, pp. 448-456, 595-608.

10. The order failed to even offer any explanation for why Wife and Mr. Davis were excused from complying with the law after long periods of willful violation of

a stipulation Mr. Davis reached (with a June deadline) and an order Judge Ayers entered (on October 28, 2024) (Appendix, pp. 445-447, 448-456).

11. Efforts Mr. Davis and Wife took to delay and conceal information related to mandatory disclosure and certificate of compliance are part of a larger pattern relating to discovery that demonstrates a clear intent to delay, harass, and conceal evidence of marital assets. (Appendix, pp. 69-74, 153-158, 173-181, 209-237, 238-268, 285-308, 325-347, 374-418, 466-552, and 553-590).

12. Before the issue of whether Wife was concealing marital assets arose, the parties cooperated well, working together filing a joint motion for extension of time on May 2, 2024, for more time to complete the necessary paperwork and finalize the divorce amicably, without counsel. (Appendix, pp. 1-3).

13. The sudden and unfortunate turn occurred on May 14, 2024, when Husband insisted on formal discovery based on Wife's reluctance to produce financial information; Wife suddenly sent 16 pages of interrogatories to Husband (seeking everything from generic college records to health information all information already well known to Wife), filed a motion for court-monitored communications (which has never been set or heard by the Court), and filed a motion to compel payments (also never heard) all on May 14, 2024 (Appendix, pp. 1-3, 39-68, 595-608).

14. Husband always worked and compromised on resolving issues to avoid attorney involvement, which Wife attempted to exploit in filing this attack of motions and discovery clearly meant to push Husband away from pursuing Wife's financial documents; just like so much of Mr. Davis's misconduct as described below (Appendix, pp. 1-3, 39-68, 595-608).

15. Mr. Davis and Wife gradually introduced additional retaliatory litigation to use as leverage against Husband with Judge Ayers consistently finding ways to suppress and ignore the serious ongoing discovery and ethical violations. (pp. 182-190, 191-199, 276-284)

16. On October 2, 2024, Mr. Davis filed Wife's amended petition for dissolution taking an alternative position on some custody after years of agreement on 50/50, and no change in circumstances or concerns about the kids' health. (Appendix, pp. 84).

17. Perhaps not coincidentally on either end, the filing of the amended petition for dissolution just 5 days after Husband's home was flooded due to Hurricane Helene, and 26 days before the hearing on Husband's motion to compel compliance with mandatory disclosures. (pp. 81-115).

18. Mr. Davis attempted to leverage the children's holiday schedule for the kids with documents that the Court had already ordered him to produce. (P. 532, L1-12).

19. Mr. Davis even filed a sudden outright attack of 4 motions against Husband on December 13, 2024, the same day the Court approved Husband's attorney to withdraw over his objection. (pp. 149-172, 182-190).

20. Interestingly, Mr. Davis had not filed a single motion the first several months on the case, and suddenly files 4 the same day Husband is losing his attorney, on 1 day notice; obviously, the intent was to burden and harass Husband into abandoning the discovery efforts. (pp. 191-199, 269-275, 276-284).

21. The December 13, 2024 hearing is also relevant in assessing Judge Ayers bias and motivation in excusing Wife from following the law.

22. The Court moved the hearing on Ms. Hodz disputed withdrawal up more than 3 weeks over Husband's objection, gave one day's notice for the hearing, at a time when Husband was initially unable to attend, all without the Court addressing the core reason for the withdrawal. (Appendix, pp. 159-168, 169-172, 182-185, 186-190 595-608).

23. It appeared for a brief moment all the way back in May that Wife was going to voluntarily provide the financial information once Husband obtained an attorney (Appendix, p. 591, p. 3).

24. On the exact same day that Husband's prior counsel filed her notice of appearance, May 14, 2024, Wife sent an email to Husband's counsel explaining:

“I have filed a financial disclosure but will be supplementing/amending it. I am working to put together various other financial documents, which I anticipate sending your way once complete.” (Appendix, pp. 69-74, ¶3, p. 591).

25. Instead of following through with the plan above and disclosing the marital assets, Wife retained Mr. Davis and they routinely violate the rules while continuing to conceal this information from Husband (Appendix, pp. 203-208).

26. Once represented, the parties stipulated to producing all mandatory disclosure-related documents no later than June 28, 2024 (Appendix, pp. 69-74). Husband complied with the stipulation while Wife and Mr. Davis did nothing whatsoever—no documents were produced, no explanation offered, and no response to inquiries about the status of disclosures until October 22, 2024, when some limited documents were produced, just 5 days before the hearing on Husband’s motion to compel, and nearly 4 months after the stipulated date of production (Appendix, pp. 69-74, 203-208, and 591).

27. Mr. Davis then proceeded to strategically trickle out documents to put off a motion for enforcement and contempt related to mandatory disclosures (Appendix, pp. 203-208, 291-294).

28. Even though explicitly discoverable per the Rules of Procedure, Mr. Davis has objected to a request for metadata associated with the documents to determine if it were Wife or her counsel that intentionally trickled out documents. (pp. 309-319).

29. Judge Ayers' order excusing Wife from complying with a proper certificate of compliance failed to address Husband's argument that all the discovery violations, directed at delaying and concealing the same, justified striking objections from Wife under Rule 12.380(b)(2)(C), in addition to its failure to even offer any justification for excusing Wife from following the law on this issue central to the case (Appendix, pp. 445-447, 448-456).

30. Considering the long history of discovery violations and Judge Ayers' lack of concern for Husband's rights described herein make the failure to require Wife and Mr. Davis to follow the law (or even the spirit of the law) on the Certificate of Compliance even more concerning (Appendix, pp. 285-308, ¶35, A-M, 349-354, 357-372, 420-426).

31. The trial court is aware that Wife's discovery violations and Mr. Davis's unethical conduct go to the heart of the dispute in this matter as communicated in Husband's initial filing before either party had attorneys, as well as essentially every filing from Husband since. (Appendix, pp. 39-68).

32. Judge Ayers has intentionally avoided any consideration of Mr. Davis's long history of discovery and ethical violations despite Husband bringing them up at every hearing and in many pleadings (Appendix, pp. 209-237, 285-308, 325-347, 437-444, 466-552).

33. When Husband began talking about the long list of ethical concerns at the December 19, 2024 hearing, Judge Ayers interjected before Husband could even explain the initial 4-month delay from the stipulated due date (June deadline to October first attempt to produce anything or respond in any way), which, in context with all of the other delay and conceal tactics, was quite clearly intentional (Appendix, pp. 209-237, p. 13, L8-21).

34. All the way back on December 13, 2024, as Judge Ayers severed my rights to counsel, the court's response to Husband bringing up concerns about violations in the mandatory disclosure process was, "Mr. Hanson, we're not going backwards" even though at that time, Wife was in violation of the order at issue in this Petition for over a month. (pp. 222, L.13-18, 595-608, 609-633)

35. Mr. Davis has also worked to avoid any trial court scrutiny of his misconduct including at the January 21, 2025 hearing. He immediately interjected before Husband could answer a question from the Judge about "What conduct?" (from Mr.

Davis) Husband wanted the trial court to address (Appendix, pp. 374-418, p. 388, L23 - p. 389, L8).

36. The Court once again suppressed the information about Mr. Davis's conduct refusing to allow Husband to even offer an answer to the trial court's question about "what conduct" to address (Appendix, pp. 374-418).

37. There is a lengthy history of Judge Ayers' conduct in this matter that shows a complete disregard for Husband's due process rights even moving up the hearing on his counsel's (Ms. Hodz) motion to withdraw over Husband's objection, when there were no ethical concerns ever raised about Husband's behavior (See Appendix, pp. 200-202, 285-308 [Note: Docket #72, 87, 100 not in Appendix], 356-373 for a list).

38. All of Judge Ayers' actions in relation to Ms. Hodz's withdrawal assisted her in avoiding any scrutiny on potential misconduct while Mr. Davis consistently enjoys a lack of accountability for his actions in the case (Appendix, pp. 209-237, 325-347, 374-418, 553-590, 609-633).

39. Despite Husband's strenuous objections to going forward with the December 13, 2024 hearing, and even more important objections to Ms. Hodz's withdrawal, Judge Ayers refused to ask any of the questions about attorney interactions and conduct raised by Husband and simply granted the withdrawal at a hearing on a day's notice (Appendix, pp. 200-202, 325-347, 595-608, 609-633).

40. Judge Ayers' refusal to investigate the reason for withdrawal and approval of Ms. Hodz's immediate withdrawal placed Husband in an incredibly difficult position especially given that he had to stay up all night to prepare for the December 19, 2024 hearing, on 1 day's notice at a time when he had a commitment with the children (Appendix, pp. 200-202, 595-608, 609-633).

41. And every opportunity that arose since then when Judge Ayers could have moved the case forward by allowing simple discovery, she refused, all while continuing to protect the attorneys. Even after Mr. Davis failed to attend the January 9, 2025 hearing on which he was noticed, previously attended the December 13, 2024 on the same topic, and both he and the court were well aware of Husband's insistence on Mr. Davis being at the hearing, the Court simply approved of Mr. Davis's failure to attend the hearing and allowed Ms. Hodz withdrawal in a manner that effectively deprives Husband of the right to counsel. (Appendix, pp. 286, ¶1-5, 325-347 and 374-418).

42. Husband filed a motion to disqualify Judge Ayers on January 29, 2025, something he had never done despite litigating hundreds of cases over an 18-year law practice (Appendix, pp. 356-373). Judge Ayers entered an order refusing to disqualify herself on February 5, 2025, without identifying any "insufficiency" in

the motion (Appendix, pp. 356-373 [Note: Docket #119 not in Appendix; assumed included in motion context]).

43. By February 12, 2025, Husband sent the Chief Judge the email and attachments below raising concerns about Judge Ayers' conduct in this case, extreme concern over shielding family law attorneys from any accountability, and the manner in which she ran for Judge/coming up for reelection next year (Appendix, pp. 419-436).

44. When the parties attended a hearing on February 12, 2025, Judge Ayers was extremely angry in scolding, primarily Husband, before going on the record for the hearing (Appendix, pp. 466-552).

45. On February 13, 2025, Husband filed a motion to vacate, for rehearing, and/or for formal written order related to Judge Ayers' refusal to disqualify herself (Appendix, pp. 437-444).

46. Judge Ayers ultimately entered a written order refusing to disqualify herself, again failing to identify any "insufficiency" in the motion that would justify the denial. (Appendix, pp. 437-444, 634-636).

47. The record is full of examples of Judge Ayers' denying Husband due process from the manner in which his attorney withdrew, the refusal to investigate communications between the attorneys (effectively denying Husband any right to

counsel in this matter), and now explicitly excusing Wife from complying with the law at the core of this dispute and the legislative intent of the family law system (to allow free access to information to ensure a fair result).

48. The concerning pattern of bias continued when Judge Ayers again refused to allow Husband to describe the pattern of ethical violations at the heart of the discovery issue at the February 12, 2025 hearing (Appendix, pp. 466-552, p. 484, L10-24).

49. The trial court failed to even address Wife's failure, refusal, and admitted inability to fully comply with what's required for a proper certificate of compliance, (Appendix, pp. 466-552, most concisely referenced at pp. 496-498).

50. Furthermore, Husband's offer to void the post-marital agreement in exchange for a waiver of financial discovery records demonstrates that Wife and Mr. Davis cannot logically be offering complete information. (pp.

51. Husband explained the obvious deficiency again during the February 12, 2025 hearing initially communicated to Mr. Davis in a December 6, 2024 email. As the Court will see from the below excerpt, Husband communicated this violation of the Court's October 28, 2024 order in detail even offering to explain further:

52. "The obvious deficiency that I see is that you and Sarah swear that she had no interest in any relevant account for the last 12 months. That's obviously not what the

statute requires. The statute provides specific time periods for Mandatory disclosure, and failing to properly swear no other account interest in the statutorily required time periods is a significant problem. If you have any questions about what I'm requesting, I'd be glad to help explain further. If you read your certificate of compliance, there are several paragraphs that improperly state 'the last 12 months.' The relevant periods are statutorily mandated and go back further. Please fix that immediately." (Appendix, pp. 153-158, p. 1).

53. Mr. Davis never attempted compliance with the October 28, 2024 order nor responded to this request, apparently simply waiting until Judge Ayers could excuse him and his client from compliance with the law that strikes at the heart of the parties' dispute.

54. On February 26, 2025, Husband filed the "Husband/Respondent's Motion to Vacate Order Denying Motion for Enforcement and Finding of Contempt and/or Formal Written Order Addressing the Facts Herein and Those Included in the Original Motion at Appendix, pp. 203-208" (Appendix, pp. 448-456), asserting the denial was tainted by judicial bias, intentional noncompliance, and the Court's continuing indifference or even approval of Scott Davis's unethical conduct. The trial court denied this motion on March 5, 2025 (Appendix, pp. 457-465), again without addressing Husband's allegations.

55. On February 26, 2025, Husband filed a Motion to Vacate and for Rehearing (Appendix, pp. 448-456), asserting the denial was based on mistake, fraud/misrepresentation, and uncontroverted evidence of noncompliance and prejudice. The trial court denied the Motion to Vacate and for Rehearing on February 14, 2025 (Appendix, pp. 445-447), without addressing the specific facts or legal errors raised.

56. Perhaps the most concerning aspect of Mr. Davis's litigation strategy relates to leveraging the children in efforts to get Husband to abandon these discovery attempts (Appendix, pp. 169-172, 186-190).

57. Without any change in circumstances for the children, and no concerns about their welfare from any teachers, kids, or other adults, Wife and Mr. Davis began a campaign to harass and burden Husband with retaliatory efforts even in a manner that threatens the children's welfare.

58. frivolous positions about a guardian ad litem, a psychological evaluation (Appendix, pp. 169-172, 186-190).

59. The trial court's unexplained refusal to force Wife to comply with the the certificate of compliance pleading requirement is the most egregious in a long line of biased and even spiteful decisions, all central to the core issue raised in this

Petition and throughout the litigation; questions over marital assets in Wife's name, unknown to Husband.

III. GROUNDS FOR CERTIORARI RELIEF

60. Certiorari relief is warranted because Judge Ayers' decision on this enforcement and contempt issue departs from the essential requirements of law in the excusal of Wife from certifying compliance with mandatory disclosures (as required under Rule 12.285(j)).

61. Husband has attempted to resolve this discovery issue efficiently, but the trial court's handling unnecessarily causes a growing period of conflict to the significant detriment of the parties and their children. (Appendix, pp. 285-308, ¶¶35, A-M, 349-354, 357-372, 420-426).

62. A long series of discovery violations (that Judge Ayers continues to ignore and even suppress) complicate the material injury from the court's error on this issue, by denying Husband a fair process.

63. In assessing material harm and whether there's any remedy on appeal, Husband respectfully requests that the Court consider the welfare of the children and whether forcing the parties to continue in this forum where one party doesn't have to follow the law or even basic ethical norms, as the other is repeatedly denied access

to information at the core of the case that would allow the parties to resolve the matter efficiently.

64. Additionally and alternatively, it may take months or years for this to resolve under Judge Ayers, and concerns over concealment of finances that could be hidden in the interim which may not be remediable on appeal. Reeves v. Fleetwood Homes of Fla., Inc., 889 So. 2d 812, 822 (Fla. 2004).

65. The issue on appeal is one of statutory compliance and interpretation of discovery rules, so *de novo* review is appropriate. Allstate v. Boecher, 733 So.2d 993 (Fla. 1999).

66. Judge Ayers' order denying enforcement and contempt directly violates not only the simple language of Florida Rule of Family Law Procedure 12.285(j), but the very foundation of Florida Family Law. (Fla. Fam. L. R. P. 12.010).

67. Wife's reaction to the mandatory disclosure requirements (in light of her history of being secretive about her handling of marital income) is the sole reason that the parties required attorneys, (Appendix, pp. 39-68, 634-636).

68. This simple discovery issue on mandatory disclosures has remained the central issue in the case for nearly a full year, which has exploded into retaliatory litigation against Husband as leverage against the discovery while they violate

discovery rules and the law and basic intent of the Florida Family Law System (Appendix, pp. 203-208, 595-608).

69. Mr. Davis's and Wife's intent, with at least implicit approval of Judge Ayers, is to delay, harass, burden, and ultimately conceal, all to the detriment of Husband, making the trial court's ruling in this matter even more unjust and confusing.

70. The evidence related to assisting Mr. Davis in hiding from any accountability for his unethical actions supports both the irreparable harm and absence of remedy on appeal elements. (Appendix, pp. 209-237, 285-308, 325-347, 374-418, 466-552).

71. While Husband understands that disqualification is not specifically at issue in this proceeding, Judicial bias is as Husband fully believes that the subject of this Petition is an order entered specifically due to bias against Husband. (Appendix, pp. 445-446).

72. Bias, even only evidenced by derogatory comments made before hearing evidence, granting Certiorari review, and that is a significant aspect of the issue in the present facts similar to the Wargo case. Wargo v. Wargo, 669 So.2d 1123 (4th DCA 1996).

73. The goal of the Family Law system is to secure the just, speedy, and inexpensive determination of every action, to provide a framework for the fair and efficient resolution of family law disputes.

74. The Order giving rise to this Petition departs from the essential requirements of law and warrants certiorari review because it undermines the core aims of Florida family law, as articulated in Fla. Fam. L. R. P. 12.010 and 12.285.

75. Rule 12.010(a)(1) mandates that proceedings “be construed to secure the just, speedy, and inexpensive determination of every action,” while Rule 12.010(b) establishes a “framework for the fair and efficient resolution of family law disputes.”

76. Rule 12.285 furthers this intent by requiring broad, mandatory disclosure to ensure transparency and informed decision-making—critical here, where discovery into Wife’s finances is the sole issue driving this case (Appendix, pp. 203-208, ¶1).

77. By excusing Wife’s noncompliance, Judge Ayers’ orders contravene these rules, perpetuating a nine-month delay (from June 28, 2024) and causing irreparable harm to Husband’s ability to assess the marital estate and to the family’s ability to establish an effective coparenting relationship.

78. This departure denies Husband due process and obstructs the equitable resolution intended by Florida family law, satisfying the threshold for certiorari under Rule 9.100 - a clear legal error and material injury with no adequate remedy on appeal from a final judgment. In fact, the present facts provide extraordinary to support

79. The failure to actually comply with the Certificate of Compliance requirements goes against the core purpose of the rule and the statute as a whole—to allow the parties free access to information for a fair result and eliminating conflict and confusion as the parties transition into a coparenting relationship (Fla. Fam. L. R. P. 12.010).

80. Mr. Davis has obstructed Husband's discovery efforts in numerous regards, including in relation to subpoenas for records which are less onerous than those that Wife forced Husband to personally compile in response to her interrogatories (Appendix, pp. 75-80, 309-319).

81. In the order under review, Judge Ayers goes too far in that she excuses Wife from a requirement not only explicit in the Rules, but also at the core dispute that has resulted in all this litigation, expense, and suffering within the family.

82. Discovery is broad in family law actions to serve its aim of a fair and efficient result.

83. Yet, the trial court refuses to even require Wife to comply with "Mandatory" disclosures. (pp. 203-208, 445-447).

84. Going so far in the opposite direction of what Florida family law requires, the Order under review is precisely the type of case for which the writ process exists. (pp. 445-447).

85. Husband has attempted everything he can in trying to get Judge Ayers to disqualify herself or to get the chief Judge to reassign the case, yet he and his children's future are still under the authority of Judge Ayers, raising obvious concerns. (pp. 356-373, 466-552, specifically at, p. 487, L7-12, P. 488, L20-24, p. 490, L 15-22).

86. Allowing Judge Ayers' order to stand supports erring on the side of concealment of relevant evidence in direct violation of the core principle of Florida family law which is clearly going to cause the litigants unnecessary, but continuing conflict and suffering.

87. Despite the stipulated deadline of June 28, 2024, and the court's October 28, 2024 10-day compliance order, Wife produced only partial documents—trickling out Ascensus account records from April 1, 2024 forward, then October 1, 2023 forward, and finally 2022 forward. However, the Certificates of Compliance limited “certification” to “the last 12 months” or from October 2023 forward (Appendix, pp. 203-208, ¶10-16).

88. These certificates on their faces fail to certify, under oath, the absence of interest in accounts or assets for the statutory period prior to filing, as required by Rule 12.285(j). Husband's Motion for Enforcement and Finding of Contempt, filed December 13, 2024 (Appendix, pp. 203-208), and subsequent Motion for Rehearing,

filed February 26, 2025 (Appendix, pp. 448-456), highlighted this willful noncompliance, yet the trial court, per orders entered February 14, 2025, and March 5, 2025, denied relief without explanation, effectively excusing Wife's violations (Appendix, pp. 445-447, 457-465).

89. The bias and spiteful conduct from Judge Ayers demonstrates such an attack on the administration of justice such that Certiorari review is necessary to protect the litigants and their children from further permanent harm (Appendix, pp. 356-373, 419-436, 437-444, 448-456).

90. Allowing this order, a clear departure from the basic purpose of the family law system, to stand at least implicitly approves of the ethical violations that Mr. Davis and Judge Ayers continue to bury as best they can (Appendix, pp. 457-465 and 466-552).

91. Mr. Davis, counsel for Wife, has committed well over a dozen discovery violations and unethical actions all with the specific intent of delaying discovery and concealing financial information (Appendix, pp. 203-208, 285-308). He continues to violate the ethical rules in pursuit of delay, harassment, and concealment not only without consequence, but it seems to somehow benefit him in front of Judge Ayers, who has actually refused to force his client to follow the law precisely on an issue that is central to the entire case and Husband's concern since day one.

92. Wife's Certificates of Compliance strategically and sneakily limit certification to "the last 12 months" (October 2023 forward), not the statutorily mandated periods described in Rule 12.285(d) and (j). (Appendix, pp. 203-208, ¶ 15-21).

93. This deceptive way of drafting the Certificate of Compliance and the strategic trickling out of documents to put off enforcement of the October 28, 2024 order requiring mandatory disclosure completion within 10 days raise obvious ethical concerns (Appendix, pp. 203-208).

94. More importantly for Husband, they raise well-founded questions about whether Wife has disclosed all of her marital assets and income which until answered, a fair and efficient result is impossible (Appendix, pp. 203-208).

95. The trial court is well aware of these facts, but continues to act almost as an extension of Mr. Davis's interests which certainly requires action by this Honorable Court. (Appendix, pp. 285-308, ¶35, A-M, 349-354, 357-372, 420-426).

96. Additional facts in the record including Wife's refusal to agree to voiding the postnuptial agreement in exchange for her agreement to waive discovery objections, provide essentially definitive evidence of concealment as Wife is taking a position that's completely illogical; if she's disclosed everything, voiding the Post marital agreement would likely result in a significant windfall to her as well as an end to this litigation. (pp. 285, ¶6 – p.286, ¶10).

97. Instead, if one is to believe that Wife has already disclosed all of her assets, he/she must also accept that Wife and Mr. Davis's litigation strategy is to get Wife less money while needlessly prolonging litigation.

98. Obviously, that's nonsensical, only adding to the evidence that prevent Husband from forming a coparenting bond on mutual trust and respect.

99. Refusing to grant review of this issue condemns this family to more misery litigating this discovery issue possibly for another year of our lives that neither the parties nor the children can get back.

100. Judge Ayers continues to put forth an extraordinary amount of effort to excuse the attorneys from any accountability and avoid comment on Mr. Davis's unethical conduct, all at the expense of Husband and his children (See also Appendix, pp. 203-208, 285-308, 445-447, 448-456, 457-465, 466-552).

101. Every fact of the case supports requiring Wife to strictly comply with all disclosures and discovery in the case if there is to be any sense of fairness in the proceedings.

102. Judge Ayers is clearly unwilling to even follow the law if that means that Husband gets answers to the questions that have driven all of this litigation, now involving the welfare of the children.

103. Accordingly, certiorari review is necessary in order to avoid permanent damage not remediable on appeal. When the Judge remains intentionally blind to a pattern that tells the entire story of the case, a fair result is impossible.

104. The delays and incredibly biased process created by Judge Ayers are causing an extraordinary amount of stress on the family as her refusal to follow the law causes this continuing period of conflict and litigation over this simple discovery issue.

105. The denial in this case perpetuates Wife's concealment of financial information critical to the marital estate, denying Husband discovery rights and prejudicing his ability to resolve this case, causing harm not remediable on appeal (Appendix, pp. 203-208, ¶ 23; 448-456, p. 462, ¶ 37, p. 463, ¶50).

106. The trial court's refusal to address Wife's counsel's unethical conduct and discovery violations, while suppressing Respondent's ability to raise these issues, denies fundamental fairness and due process in this matter (Appendix, pp. 448-456, ¶ 11, 20, 28).

107. The trial court actively shielded Mr. Davis not only from any consequences when he remained in violation of a stipulation he reached 9 months prior and a court order from 3 months ago, it excused his client's compliance with the "Mandatory" disclosures.

108. That's precisely the type of significant departure from the essential requirements of law where Certiorari review is necessary to avoid a miscarriage of justice and destroying a family's opportunity to move onto a healthy coparenting relationship.

IV. Conclusion

109. In determining whether to grant review, Husband submits that one must consider the long course of unethical conduct from Mr. Davis and Judge Ayers inappropriate suppression, and implicit approval of it leading up to her actively excusing Wife from following the plain language of Rule 12.285(j):

The party must swear or affirm under oath that the disclosure is complete, accurate, and in compliance with this rule, unless the party indicates otherwise, with specificity, in the certificate of compliance.

110. Furthermore, the facts relating to the long course of obstructing Husband's right to discovery and the retaliatory litigation from Wife, are probative in assessing the permanent damage not remediable on appeal elements.

111. The trial court departed from the Essential Requirements of Law, including mandates under Rule 12.285(j) and Rule 12.380 by failing to enforce its October 28, 2024, order requiring compliance with the Rule (Appendix, pp. 150-152).

112. Instead of sanctioning Wife's and Mr. Davis's willful noncompliance for several months and many other ethical and discovery violations, the Court went the

opposite direction of what the law and core principles of Florida family law require without any explanation. (Rule 12.010 and 12.380).

113. Looking closely at the pattern of events in the case, it's absolutely clear what Wife and Mr. Davis are attempting to accomplish, delay, and then harass and burden Husband, and ultimately conceal the evidence.

114. Judge Ayers has shown an inclination to actively participate in the inappropriate actions of Wife and her counsel, and even Husband's former counsel, while now blatantly ignoring the law in excusing Wife from "mandatory" disclosure requirements even when they were clearly lacking based on Mr. Davis's presentation at the hearing. (pp. 466-552).

115. This goes far beyond some adverse rulings against Husband.

116. Specifically, the Court misapplied the law to excuse deficient Certificate of Compliance at the core of the parties' single dispute that has now spiraled into a far more chaotic and extensive conflict than otherwise necessary. (Appendix, pp. 203-208, ¶ 15-21; 448-456, ¶ 36-42).

117. The trial Court's refusal to follow the most basic and important aspect of Florida Family law and its indifference to Husband's due process rights are certainly going to cause permanent and continuing injury to the parties' health and finances in addition to impacts on the children. (Appendix, pp. 39-68, pp. 595-608).

118. Especially given the way Mr. Davis is litigating this matter, it's an extremely precarious situation so long as the parties remain in litigation in a process that is so blatant and extreme in its unfairness, Certiorari review is necessary.

V. RELIEF SOUGHT

Petitioner/Husband requests that this Court:

A. Issue a Writ of Certiorari quashing the Order Denying Husband/Respondent's Motion for Enforcement and Finding of Contempt of February 14, 2025 (Docket #130), and the Order Denying the Husband/Respondent's Motion to Vacate Order Denying Motion for Enforcement and Contempt (Docket #151).

B. Remand with instructions to:

- Enforce Rule 12.285, requiring Wife to provide a proper Certificate of Compliance swearing that she has disclosed all evidence of financial assets, marital income and property, and the other specific documents required for full compliance with Rule 12.285 within 5 days, and/or disclose any and all evidence of marital income/assets included within the purview of the rule not yet disclosed,
- Find Wife and Mr. Davis in contempt for violating the October 28, 2024,
- Order the Court to:

- Impose sanctions under Rule 12.380, including authorizing Chase Bank subpoenas, striking any discovery objections Wife may have related to any financial information requested or subpoenaed, and remove Judge Ayers from the case as an extraordinary remedy given the facts of this case;
- Recommend and/or order any sanctions appropriate given the facts,
- Award Petitioner/Husband costs, attorney fees for his time working on the case, all costs incurred, appropriate sanctions, and further relief as deemed just.

DATED this 17th day of March, 2025.

Respectfully submitted,

/s/ Chris Hanson

CHRIS HANSON, as attorney for myself

Primary E-Mail: [REDACTED]

VERIFICATION

Under penalties of perjury, I declare that I have read the foregoing Answer and Counter Petition and that the facts stated in it are true to the best of my knowledge and belief.

12-16-24

Date

Chris Hanson

Christopher Hanson, Respondent

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished to Scott Paul Davis, Esq., via email to: scott@davislawtampa.com; and service@davislawtampa.com; and all others designated on e-service list on this 17th day of March, 2025.

/s/ Chris Hanson

Chris Hanson

Primary E-Mail: [REDACTED]

CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this Petition for Writ of Certiorari complies with the requirements of Florida Rule of Appellate Procedure 9.100 and the Second District Court of Appeal's formatting standards. The petition is submitted in Times New Roman, 14-point font, double-spaced, with 1-inch margins, and does not exceed the 50 page limit under Florida Rule of Appellate Procedure 9.100(g), as applicable to certiorari petitions.

/s/ Chris Hanson

Chris Hanson

Primary E-Mail: [REDACTED]

Dated: March 17, 2025